IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 206
CA-(CAA)-13/ND/2023

IN THE MATTER OF:
Fortis Emergency Services Limited ... Applicant/Petitioner
and Fortis Hospitals Limited

Under Section: 230-232

Order delivered on 06.11.2023

CORAM:
SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)

SH. L. N. GUPTA, HON'BLE MEMBER (T)

PRESENT:
For the Applicant : Sr. Adv U.K. Chaudhary, Adv. Arnav Roy, Adv. Mansumyer Singh, Adv. Siddharth
For the RD : Adv. Shankari Mishra

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

Mr. U. K. Choudhary, Ld. Sr. Counsel concluded his submissions. The salient submission espoused by him is that no pending criminal proceeding can stand in the way of a merger. Even after the merger, the proceedings can continue against the Transferee Company and also the promoters of the Transferor Company. Nevertheless Ms. Shankari Mishra, Ld. Counsel appearing for the RD submitted that in the wake of the provisions of Sections 89 & 90 of the Companies Act, 2013, the scheme of merger cannot be approved. She seeks an opportunity to file an affidavit explaining how the aforementioned provisions of the Companies Act, 2013 in the way of approval. In the affidavit to be filed, it would be open to RD to state whatever objections, it has qua the scheme for approval of which the present proceedings have been instituted. Let the needful be done by tomorrow. Let the RD remain present during the proceedings on the next date virtually. Ld. Counsel for the RD would also send a copy of the additional affidavit filed to Mr. U.K. Choudhary, Ld. Senior Counsel.

Let the petition- be listed on 10.11.2023.

Sd/-
(L. N. GUPTA)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J

UPASANA